

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #10	CCRB Case #: 202408694	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 09/01/2024 8:00 PM	Location of Incident: Saratoga Avenue between Blake Avenue and Dumont Avenue	18 Mo. SOL 3/1/2026	Precinct: 73		
Date/Time CV Reported Tue, 09/03/2024 9:21 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/03/2024 9:21 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Rafed Khan	01346	956796	073 PCT
2. PO Justin Anormaliza	06408	975965	073 PCT
3. PO Matthew Lester	00954	976224	QM SEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS John Freund	05086	954827	073 PCT
2. DT3 Ray Silva	07211	959986	INT FIO PRG
3. PO Wilson Rodriguez	18658	959147	INT FIO PRG

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Rafed Khan	Abuse: Sergeant Rafed Khan issued an unlawful summons to § 87(2)(b)	A . Substantiated
B . PO Justin Anormaliza	Abuse: Police Officer Justin Anormaliza refused to provide his name to § 87(2)(b)	B . Substantiated
C . PO Justin Anormaliza	Abuse: Police Officer Justin Anormaliza refused to provide his shield number to § 87(2)(b)	C . Substantiated
D . SGT Rafed Khan	Abuse: Sergeant Rafed Khan refused to provide his name to § 87(2)(b)	D . Unfounded
E . SGT Rafed Khan	Abuse: Sergeant Rafed Khan refused to provide his shield number to § 87(2)(b)	E . Unfounded
F . PO Matthew Lester	Abuse: Police Officer Matthew Lester refused to provide his name to § 87(2)(b)	F . Miscellaneous - Subject Terminated
G . PO Matthew Lester	Abuse: Police Officer Matthew Lester refused to provide his shield number to § 87(2)(b)	G . Miscellaneous - Subject Terminated
H . PO Justin Anormaliza	Force: Police Officer Justin Anormaliza used physical force against § 87(2)(b)	H . Within NYPD Guidelines
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On September 3, 2024, § 87(2)(b) filed this complaint with the CCRB by phone.

On September 1, 2024, at approximately 8:00 p.m., in the vicinity of Saratoga Avenue and Dumont Avenue in Brooklyn, § 87(2)(b) walked past Police Officers Matthew Lester and Justin Anormaliza, both from the 73rd Precinct (PO Lester has since been transferred to the Quartermaster Section), and took a picture of them. Sergeant Rafeed Khan, also of the 73rd Precinct, approached § 87(2)(b) with PO Lester and PO Anormaliza. Sgt. Khan approved of PO Lester issuing § 87(2)(b) a summons for disorderly conduct (**Allegation A: Abuse of Authority – Unlawful Summons, Substantiated**). PO Anormaliza, Sgt. Khan, and PO Lester all allegedly refused to provide their names and shield numbers to § 87(2)(b) (**Allegation B: Abuse of Authority - Refusal to provide Name, Substantiated; Allegation C: Abuse of Authority – Refusal to provide Shield Number, Substantiated; Allegation D: Abuse of Authority – Refusal to provide Name, Unfounded; Allegation E: Abuse of Authority – Refusal to provide Shield Number, Unfounded; Allegation F: Abuse of Authority – Refusal to provide Name, Miscellaneous – Subject Terminated; Allegation G: Abuse of Authority – Refusal to provide Shield Number, Miscellaneous – Subject Terminated**). PO Anormaliza pushed § 87(2)(b) (**Allegation H: Force – Physical Force, Within NYPD Guidelines**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued a summons for disorderly conduct (**BR 05**).

The CCRB received body-worn camera (BWC) footage of the incident from the NYPD (**BRs 19- 24**) and photos from § 87(2)(b) documenting the incident (**BRs 01- 04**), relevant portions of which will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Rafeed Khan issued an unlawful summons to

§ 87(2)(b) (**BR 06**) stated that he saw PO Anormaliza and PO Lester speaking to two female individuals on the sidewalk. § 87(2)(b) took out his phone to record the officers in case PO Anormaliza, with whom he had previously interacted, harassed him and accidentally took an audible picture of the officers and the female individuals. PO Lester asked § 87(2)(b) why he was taking pictures and accused him of harassing the female individuals. As § 87(2)(b) walked away, he overheard PO Anormaliza calling Sgt. Khan on his cell phone. At the corner, PO Lester and PO Anormaliza, along with six to eight other officers, approached him and accused him of fleeing the scene. PO Lester issued § 87(2)(b) a summons for disorderly conduct.

§ 87(2)(b) provided the photo (**BR 02**), which captures PO Lester filling out a document with one of the female individuals, and a video (**BR 03**), which captures PO Anormaliza accusing him of scaring the female individuals, which § 87(2)(b) denies.

In PO Anormaliza's first BWC activation (**BR 19**), at 05:18, PO Anormaliza and PO Lester are assisting an individual filling out a report when they notice § 87(2)(b) walk past them while holding a cell phone. PO Lester asks § 87(2)(b) "You good, bro?" At 05:40, PO Anormaliza and § 87(2)(b) accuse each other of harassment. § 87(2)(b) says all he did was take a picture, and PO Anormaliza and PO Lester respond that he is harassing the individuals the officers were helping with the report. PO Anormaliza tells § 87(2)(b) to stay away from him and his job. The female individual completing the report says to PO Anormaliza, "Why can't he § 87(2)(b) just go? I mean, what the hell?" PO Anormaliza tells § 87(2)(b) to stop talking to the individuals and tells the individuals to move away from § 87(2)(b). At 07:05, PO Anormaliza calls Sgt. Khan and tells him that § 87(2)(b) is trying to interrupt his investigation. At 07:14, while PO Anormaliza is on the phone, § 87(2)(b) stands approximately 10 to 15 feet away from PO Lester and the female individual while shouting that PO

Anormaliza is lying. At 09:48, PO Anormaliza tells Sgt. Khan, who arrived on scene, that § 87(2)(b) has harassed him and the individuals on scene, interrupted his investigation, and refused to leave.

The second BWC video from PO Anormaliza (**BR 20**) shows that at 00:35, PO Anormaliza, PO Lester, Sgt. Khan and other officers approach § 87(2)(b) who is standing at the corner. At 05:28, PO Lester issues a summons to § 87(2)(b) and all officers walk away.

BWC footage from PO Lester (**BR 21, 22**) and Sgt. Khan (**BR 23, 24**) is consistent with PO Anormaliza's.

PO Anormaliza (**BR 07**) stated that he and PO Lester were assisting individuals fill out a domestic incident report (DIR), when he saw § 87(2)(b) stop and record the individuals and officers. PO Anormaliza thought that the individuals appeared uncomfortable with § 87(2)(b) presence because they huddled away from him. PO Anormaliza told § 87(2)(b) to walk away two times, but § 87(2)(b) did not move. PO Anormaliza eventually walked away after the officers finished writing the DIR. PO Anormaliza called Sergeant Khan and told him that § 87(2)(b) was harassing him and not letting him do his job.

PO Anormaliza told Sgt. Khan what happened upon his arrival and explained to him that he thought it appropriate to issue § 87(2)(b) a summons for disorderly conduct, given that he had interrupted the officers while they were filling out the DIR, bothered the individuals involved, and refused to leave despite commands to do so. When Sgt. Khan concurred with PO Anormaliza's assessment, officers approached § 87(2)(b) and one of them, not PO Anormaliza, issued § 87(2)(b) a summons for disorderly conduct.

PO Lester's statement (**BR 08**) was generally consistent with PO Anormaliza's. PO Lester was concerned that § 87(2)(b) was bothering the individuals because he was taking pictures of them and possibly the DIR, which contained sensitive information, and because he was in a position to overhear any sensitive information provided by the individuals regarding the DIR. PO Lester and PO Anormaliza told Sgt. Khan about what happened and § 87(2)(b) actions, and that they initially wanted to arrest § 87(2)(b) for obstruction of governmental administration (OGA). However, Sgt. Khan instead told them to issue § 87(2)(b) a summons for disorderly conduct.

Sgt. Khan (**BR 09**) stated that, upon arrival, PO Lester and PO Anormaliza informed him that they had been filling out a DIR and interviewing the victim for the DIR when § 87(2)(b) interfered by "coming towards them in their face," refusing to leave, speaking to the victim and her friends, and yelling at both officers, which prevented them from completing the DIR. Either PO Lester or PO Anormaliza explained that they wanted to issue § 87(2)(b) a summons for disorderly conduct. While Sgt. Khan denied making the decision to issue the summons, he agreed with PO Anormaliza and PO Lester that § 87(2)(b) behavior rose to disorderly conduct.

PO Lester issued § 87(2)(b) a summons for disorderly conduct (**BR 05**), which notes that § 87(2)(b) hindered an investigation by recording/taking pictures of the complainant and that he refused to leave when asked to do so.

Administrative Guide 304-21 (**BR 25**) states that "Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force. The right to lawfully observe and/or record police activity extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording."

New York State Penal Law 195.05 (**BR 26**) states that a person is guilty of obstructing governmental administration (OGA) when such person intentionally obstructs, impairs, or prevents the administration of law or other governmental function or prevents or attempt not prevent a public servant from performing an official function, by means of intimidation, physical force or

interference, or by means of any independently unlawful act.

NY CLS Penal § 240.20 (BR 11) states that a person is guilty of disorderly conduct when, “with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous or threatening behavior, he makes unreasonable noise, in a public place he uses abuse or obscene language or makes an obscene gesture, without lawful authority he disturbs any lawful assembly or meeting of persons, he obstructs vehicular or pedestrian traffic, he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse, or he creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.”

Per *People v. Baker*, 20 N.Y. 3d 354 (2013) (BR 12), when determining whether a person is guilty of disorderly conduct, police officers are to consider the public harm element of the conduct by assessing the nature and character of the conduct, the time and place where the conduct occurred, the number of people in the vicinity, whether people in the vicinity were drawn to the disturbance, how many were drawn to the disturbance, and how those people reacted.

Given that Sgt. Khan was the supervising officer on scene and that he admittedly agreed that § 87(2)(b) behavior constituted disorderly conduct, this allegation has been pleaded against him.

It was undisputed that § 87(2)(b) interrupted PO Anormaliza and PO Lester as they assisted another individual complete a DIR, and BWC documents that the individual was bothered by his continued presence at the location, which delayed the investigation into that separate incident. § 87(2)(g) was not fighting, acting in a threatening manner, or creating a hazardous condition, did not gather with a crowd of others who refused to disperse, and did not impede vehicular or pedestrian traffic. § 87(2)(g)

It is therefore recommended that Allegation A be Substantiated.

Allegation (B) Abuse of Authority: Police Officer Justin Anormaliza refused to provide his name to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Justin Anormaliza refused to provide his shield number to § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Rafed Khan refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Sergeant Rafed Khan refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Matthew Lester refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Matthew Lester refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) (BR 06) stated that while PO Lester was writing him the summons, he asked each officer for their name and shield number, which most of them provided. However, PO Lester did not give his information and refused to do so because he was conducting an investigation, while PO Anormaliza only “mumbled the information” and did not provide it clearly. Sgt. Khan said, “shut up,” in response, and did not provide the requested information.

§ 87(2)(b) provided a picture of the summons he received (BR 01), which notes PO Lester’s name and tax number but not his shield number.

In the video § 87(2)(b) provided (BR 04), at 00:28, § 87(2)(b) asks PO Anormaliza for his name and shield number. PO Anormaliza says something inaudible at a low volume. § 87(2)(b) asks him again for his information, and PO Anormaliza replies that he already said it. At 00:33, § 87(2)(b) turns to Sgt. Khan and asks for his name and shield

number, both of which he provides. § 87(2)(b) turns to PO Lester, who is checking § 87(2)(b) ID, and asks for his name and shield number. Sgt. Khan interjects and tells him that he will provide his information after he is finished.

BWC from PO Anormaliza, PO Lester, and Sgt. Khan (BR 20, 22, 24) is consistent with § 87(2)(b) cell phone video. At 01:05 in PO Anormaliza's video, 00:55 in PO Lester's video, and 01:08 in Sgt. Khan's video, § 87(2)(b) asks PO Anormaliza for his name and shield number. PO Anormaliza mumbles an inaudible response at a volume, and none of the videos capture what he is saying. Additionally, BWC footage from PO Lester (BR 22) does not ever capture him verbally providing his name or shield number to § 87(2)(b).

PO Anormaliza (BR 07) stated that he provided his name and shield number verbally to § 87(2)(b) during the incident when he requested it, and that he had also given his information in past encounters with him.

PO Lester (BR 08) acknowledged, after seeing his BWC, that § 87(2)(b) asked for his name and shield number during the incident. PO Lester explained that he provided the requested information by filling out the disorderly conduct summons, which would have contained his name and shield number.

§ 87(2)(g)

Sgt. Khan (BR 09) stated that he did provide his name and shield number verbally to § 87(2)(b) when he requested it.

Patrol Guide procedure 304-11 (BR 13) states that officers must courteously and clearly state their rank, name, shield number, and command to anyone who requests that they do so.

Although it was undisputed that § 87(2)(b) had previously interacted with PO Anormaliza, PO Anormaliza was still required to clearly provide his name and shield number upon § 87(2)(b) request. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations B and C be Substantiated.**

BWC clearly captures that Sgt. Khan verbally provided his name and shield number upon request. It is therefore recommended that **Allegations D and E be Unfounded.**

§ 87(2)(g) it is recommended that **Allegations F and G be closed as Miscellaneous – Subject Terminated.**

Allegation (H) Physical Force: Police Officer Justin Anormaliza used physical force against

§ 87(2)(b)

§ 87(2)(b) (BR 06) stated that while waiting to receive his summons, he danced in front of the officers to deescalate the situation and reduce tensions. PO Anormaliza told § 87(2)(b) to stop moving, grabbed him his upper torso and arms, and slammed him against a wall. § 87(2)(b) stopped moving and was not injured.

PO Anormaliza's second BWC (BR 20) shows that at approximately 05:14, § 87(2)(b) walks toward a metal pole a few feet away from Sgt. Khan and PO Lester. PO Anormaliza follows him, grabs him by the arms, pushes him toward the corner where he had been standing, and says, "Stand right here." § 87(2)(b) arms touch a wall on the corner.

PO Anormaliza (BR 07) stated that while the officers were taking down his information, § 87(2)(b) began to move his body as if he were dancing. PO Anormaliza told him to stay in one place due to concerns that he could run away. When § 87(2)(b) walked away from the officers towards a patch of grass a few feet away, PO Anormaliza pushed him back by his lower waist to where he had been standing and placed him against a wall on the corner. PO Anormaliza did so in order to prevent § 87(2)(b) from moving away further or grabbing anything dangerous while they finished issuing him a summons.

Patrol Guide procedure 221-01 (BR 14) states that force may be used when it is reasonable

to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. In determining whether the use of force is reasonable, members of the service should consider the following: The nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, size, age, and condition of the subject in comparison to the MOS, subject's violent history if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Given that PO Lester was in the process of issuing § 87(2)(b) a summons, § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Within NYPD Guidelines**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Anormaliza has been a member of service for two years and has been a subject in 11 CCRB complaints and 36 allegations, none of which have been substantiated. § 87(2)(g)
- PO Lester has been a member of service for two years and has been a subject in one CCRB complaint and seven allegations, none of which have been substantiated. § 87(2)(g)

- Sgt. Khan has been a member of service for ten years and has been a subject in four CCRB complaints and eight allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On April 25, 2025, a FOIL request was sent. Results will be attached upon receipt (**BR 17**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 10

Investigator:	<u>Justin Huang</u>	<u>Investigator Justin Huang</u>	<u>04/25/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>05/20/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date